

25STCV22730 25STCV22730

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-06-23

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Case Number: 25STCV22730 Hearing Date: June 23, 2026 Dept: 414

25STCV22730 Burrtec Waste Industries, Inc. v. Sierra 62 Santa Clarita

Partners, LP

Tuesday, June 23, 2026

[TENTATIVE] ORDER

CONTINUING THE HEARING ON PLAINTIFF'S REQUEST FOR COURT JUDGMENT BY DEFAULT

This

action arises from the alleged breach of an agreement to sell real property. Plaintiff

sues for liquidated damages in the amount of \$46,000, the amount of Defendant's

initial deposit, and a declaration that the agreement is terminated.

The

clerk entered Defendant's default on March 24, 2026. Plaintiff did not sue an

DOE defendants.

While a defaulting defendant confesses the

material terms of the complaint that are well pleaded, Plaintiff must submit

evidence of facts “concerning the damages alleged in the complaint.” (Petty

v. Manpower, Inc. (1979) 94

Cal.App.3d 794, 798; Carlsen

v. Koivumaki (2014) 227

Cal.App.4th 879, 899–900.)

Damages not fixed by contract must be proved. (Petty at 798.) Plaintiff has not provided any evidence of damages such as an

authenticated escrow statement showing that \$46,000 was deposited into escrow

as alleged. (Kim

v. Westmoore Partners, Inc. (2011)

201 Cal.App.4th 267, 272

[“... it is incumbent upon the plaintiff to prove up his damages, with

actual evidence.”].)

Accordingly, the hearing is continued to October

13, 2026, at 8:30 a.m. in Department 414 of the Stanley Mosk

Courthouse. Plaintiff is ordered to submit a supplemental declaration with

authenticated evidence of the alleged damage. The supplemental declaration

shall be filed 10 court days before the continued hearing date (or earlier).